

Smt. Aneeta Rawat v. Sri Mahendra Prasad, Executive Engineer

Allahabad High Court · Single Judge · 21 June 2021 · Contempt Application (Civil) No. 1736 of 2021 · **Contempt disposed; further time to comply with Annexure 4.2 connection direction**

HEADNOTE

On a civil contempt of a 2019 writ directing the Executive Engineer to consider grant of an electric connection in accordance with Annexure 4.2 of the U.P. Electricity Supply Code, 2005, and not to insist on a no-objection certificate if an indemnity bond would serve, the Court recorded a prima facie case, gave three weeks more to comply, and disposed of the application with liberty to file afresh if the writ remained uncomplied. The connection itself was not decided.

FACTUAL SUMMARY

Smt. Aneeta Rawat obtained a 9 July 2019 writ directing the Executive Engineer to consider her electric-connection request under Annexure 4.2 of the U.P. Electricity Supply Code, 2005, and not to insist on a no-objection certificate if an indemnity bond would suffice, her husband appearing to be the natural heir of the house owner, late Daya Ram. She alleged that, though a certified copy was submitted, Executive Engineer Sri Mahendra Prasad wilfully failed to comply, and sought punishment under section 12 of the Contempt of Courts Act, 1971.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

new-connection-annexure-4.2-contempt-compliance

HOLDING

A prima facie case of civil contempt of the 9 July 2019 writ—directing the Executive Engineer to consider grant of electric connection in accordance with Annexure 4.2 of the U.P. Electricity Supply Code, 2005, and not to insist on a no-objection certificate if an indemnity bond would serve—was made out. One further opportunity was given to comply within three weeks, and the contempt application was disposed of at this stage with liberty to move afresh if the writ remained uncomplied. ¶ 1

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents The writ now enforced in contempt had directed the Executive Engineer to consider grant of connection in accordance with Annexure 4.2 and, if necessary, not to insist on a no-objection certificate if an indemnity bond would suffice. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRIC CONNECTION SHOULD ACTUALLY BE GRANTED

The Court did not decide the connection on merits; it only directed further compliance with the prior consider-in-accordance-with-Annexure-4.2 order. ¶ 1

NOT DECIDED — WHETHER WILFUL CONTEMPT WAS ESTABLISHED SO AS TO PUNISH THE EXECUTIVE ENGINEER

Only a prima facie case was recorded; one more opportunity to comply was given and the application was disposed of at this stage. ¶ 1

